07 — Service level agreement (SLA)

Français (version de référence) : ../fr/07-engagement-niveau-service.md

> **TEMPLATE — OPTIONAL.** Annex C of template 02. Only commit to values after measuring the real availability of the infrastructure for at least [3] months.

Header	
Jurisdiction	DRC; OHADA contract law
Assumptions	H-01, H-02
Sources	— (contract clauses)
Clauses to validate	V-01 (service credits as the sole compensation)
Version	[NUMBER] of [DATE]

1. Definitions

- **Availability**: share of time, over a calendar month, during which the Nhill API answers the health probe correctly (`/health` → status `ok`) from [measurement point].
- **Excluded unavailability**: scheduled maintenance announced [48] hours in advance (at most [4] hours a month, preferably between [10 pm] and [6 am], Kinshasa time); incidents at the Customer (power, Internet, hardware); force majeure; suspension for non-payment or abuse.

2. Commitments

Indicator	Commitment
Monthly availability	[99.0] %
First response — blocking incident (sales or till impossible)	[2] business hours
First response — inconvenient incident	[1] business day
First response — question	[2] business days
Business hours	[Monday–Saturday, 8 am – 6 pm, Kinshasa time]
Channels	“Help and support” menu, [E-MAIL], [BUSINESS WHATSAPP]
Backups	daily, encrypted, kept [30] days; targeted maximum data loss: [24] hours

3. Service credits

Monthly availability	Credit (on the following month)
< [99.0] % and ≥ [98.0] %	[5] % of the monthly price
< [98.0] % and ≥ [95.0] %	[10] %
< [95.0] %	[25] %

The Customer requests the credit within [30] days of the end of the month concerned. Credits are the only compensation due for the service level, without prejudice to gross negligence. **[TO VALIDATE: V-01.]**

4. Degraded mode

When the connection is lost, the applications suspend writing without losing confirmed operations; an interrupted operation can be retried without being recorded twice. The Customer plans a fallback procedure (paper sales book) for long outages.

5. Report

On request, the Publisher shares the measured availability of the past month and the list of incidents.